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F 6492

29470 F.O.P.

Future constitutional machinery for Japan.

Transmits a copy of paper No.Gen 77/19 of the 5th September of the Far Eastern Civil Planning Unit, concerning future constitutional machinery for Japan.

(Minutes.)

14/9

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Mr. Cheke.

I have read this paper with great interest and except on one or two points I agree with it. I have however the following comments.

1. With regard to the particular point to which you drew my attention about the power of the Emperor to suspend the constitution, dealt with in paragraph 2 of your paper, I have some doubt whether, despite the wording of the constitution, the Emperor really is deprived of the power to suspend it. I quite agree that on the wording of it he seems to be; at any rate it purports to be laid down for ever and to be binding on all future Emperors, subject only to their power to amend it in particular respects. I think however there is another view to be taken, and on the whole I should be inclined to take it. As I understand it, this constitution was not, so to speak, voted by any popular assembly with the concurrence of the Emperor. It was granted on the sole initiative and as the sole act of the Emperor ~~Meigi~~ Meiji, who was reigning in 1889. The basis of the grant of the constitution must therefore have been that it was innerently within the imperial power to grant a constitution. Now if it was inherently within the imperial power to grant one it must inherently be within the imperial power to suspend, withdraw or substitute another one for it. One thing an emperor could not do, I should have thought, was to alter or destroy the rights inherently part of the imperial power and institution. In brief, I should have thought that an attempt by one emperor to fetter the powers of his successors in a matter which is inherently a part of the imperial right must necessarily be invalid and ultra vires.

However, it may not be necessary to raise this issue in any formal way, since it seems probable that most of what we want can be done by means of a simple amendment of the constitution.

2. As regards the right of the allies to require alterations in the constitution, I think that, notwithstanding the absence of any specific mention of the constitution in the Potsdam Declaration, there can be no doubt at all that the allies have this right provided that the alterations are required, and properly required, in order to carry into effect some provision of the Potsdam Declaration, e.g. the democratization of the Japanese Government, the elimination of warmaking tendencies and so forth. The power of the allies to require alterations in the constitution is not of course unlimited; it relates only to the objects of the Potsdam Declaration. But to that extent it undoubtedly exists.

3./

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Meiji /

acting by himself, L

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3. I agree that the constitution must be regarded as being for the time being in force subject to the overriding authority of the S.C.A.P. exercised for the purpose of giving effect to the Potsdam Declaration and the instrument of surrender. But, as I have said, there is nothing to prevent the allies from requiring changes to be effected in the constitution if these are for purposes which the allies are entitled to have carried out.

4. Finally, I would like to make the following remarks on your paragraphs 11 to 13. It seems to me that what is fundamentally wrong with the Japanese constitution is very much the same thing that was wrong with the old pre-Great War German imperial constitution. The whole of the executive, as opposed to the legislative, power is vested in the Emperor. This is abundantly clear from Articles 9 and 10 of the constitution. The semi-legislative powers given to the Emperor under Article 9 are very striking. Similarly the power over the personnel of the administration given to him by Article 10 is very striking and clearly gives him almost despotic power over what is done. Again, under Article 11 he has the supreme command of the Army and Navy. Further, under Article 13 it is he who makes peace and war. To add to all this, there is no limit as to the quarters in which the Emperor can properly take his advice. In a constitutional monarchy a monarch can only take advice from the ministers who represent the government of the day and are themselves members of and responsible to Parliament in the sense that if they give the monarch the wrong advice they can be challenged in Parliament and, on an adverse vote, will have to go out of office. In the Japanese constitution, as I think in the old German imperial constitution, the Emperor can take advice from what quarter he likes. This is the reason why we find the military authorities in Japan wielding such power. It is not because they have any particular right to do so under the constitution, but because they are in fact in the counsels of the Emperor, who chooses to ask for, and in a large measure to be guided by, their advice. Furthermore, this advice is given by persons who are not, or anyhow need not be, members of the legislature and are certainly not responsible to it in the ordinary sense, or liable to answer for their actions or their advice by giving up their office if what they have done does not meet with the approval of the legislature. It follows that the Japanese legislature can have very little control over policy except in a negative and indirect sense. In the case of the old German constitution, such control as the German legislature exercised lay almost entirely in the fact that certain policies required expenditure of public funds and these could only be voted by the legislature. Again, it may well be that certain policies require

legislation/

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legislation in order that they may be implemented. Nevertheless, there remains a very wide field within which policy can be decided upon and put into execution without either legislation or a vote of funds. Particularly is this the case in the sphere of foreign policy. These to my mind are the radical defects of the Japanese constitution, which will require to be eradicated if Japan is ever to be governed by what we should regard as democratic methods.

P. G. Fitzmaurice

12th September 1945

As regards Mr. Fitzmaurice's view expressed in para 1, I agree that it is natural to suppose that 'an attempt by one Emperor to fetter the powers of his successors in a matter which is inherently a part of the Imperial right must necessarily be invalid and ultra vires', but the Preamble concludes with the words 'Our present and future subjects shall forever assume the duty of allegiance to the present Constitution'; and it seems clear from the opening words of the Preamble that the Emperor Meiji at least intended to fetter the powers of his successors. ~~and~~ At present, when the memory of the Emperor Meiji is still fresh in Japan, I should be inclined to doubt whether the view that that Emperor had exceeded his powers would be acceptable in any Japanese circles. That, of course, does not affect the interpretation/

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interpretation which the Allies may think proper to place upon the wording in question.

On 2 and 3, I think that the right of the Allies to require alterations in the Constitution is certainly fundamental and should be brought out more clearly in the paper.

Mr. Fitzmaurice's para 4 gives much more body to the sections on the defects of the Constitution and his points should, I think, be incorporated in a revised draft.

H. Shuckburgh.
13/9.

Mr. Fitzmaurice has written a most useful minute & I agree that his points should be incorporated in the paper.

L.H. Foulds
13/9

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S E C R E T

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GEN.77/19

COPY NO 23

5TH SEPTEMBER,1945

CABINET

FAR EASTERN CIVIL PLANNING UNIT

The Future Constitutional Machinery for Japan

I. The Constitution

1. The constitution of the Empire of Japan (See Annex) was promulgated by the Emperor MEIJI on 11th February, 1889. It contains a Preamble and seven Chapters, entitled:

I. The Emperor

II. Rights and Duties of Subjects

III. The Imperial Diet

IV. The Ministers of State and the Privy Council

V. The Judicature

VI. Finance and

VII. Supplementary Rules.

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Under this Constitution, Japan is a constitutional monarchy, with a bicameral legislature. The rights of sovereignty are vested in the Emperor and he exercises them in accordance with the provisions of the Constitution (Art. 4) The Emperor exercises the legislative power with the consent of the Imperial Diet. (Art. 5) which consists of a House of Peers composed of members of the Imperial Family, of Nobles and of Deputies nominated by the Emperor (Art. 34) and a House of Representatives composed of elected members (Art. 35). The Emperor has also the power, in emergencies and during periods when the Diet is not in session of issuing Imperial Ordinances, which take the place of law; but these ordinances must be submitted to the next session of the Diet and the Diet may declare them to the invalid (Art. 8)

2. The Emperor has not the power to suspend the Constitution. The Preamble to the Constitution opens with the words:

> "The rights of sovereignty of the State, We have inherited from Our Ancestors, and We shall bequeath them to Our descendants. Neither We nor they shall in future fail to wield them, in accordance with the provisions of the Constitution hereby granted."

The Emperor has however, the power to initiate amendments in the Constitution and this power is vested in him alone. In the words of the Preamble:

> "When in the future it may become necessary to amend any of the provisions of the present Constitution, We or Our Sucessors shall assume the initiative right, and submit a project for the same to the Imperial Diet. The Imperial Diet shall pass its vote upon it, according to the conditions imposed by the present Constitution , and in no otherwise shall Our descendants or Our subjects be permitted to attempt any alteration thereof."

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II. Surrender of Japan and Allied Demands

3. The history of Japan since this Constitution was established has shown that the Constitution can be used, and abused to serve the ends of the militarists. The surrender of Japan, which makes the authority of the Emperor and the Japanese Government to rule the State subject to the Supreme Commander for the Allied Powers, now affords an opportunity of demanding constitutional change, and the Potsdam Declaration has imposed on Japan the obligation to establish, in accordance with the freely-expressed will of the people, a peacefully inclined and responsible Government. One of the first tasks which will face both the Allies and the Japanese, therefore, will be to decide whether this object can be achieved by means of the existing Constitution, suitably modified, or whether some new form of government for Japan must be devised.

4. Under the terms of the Potsdam Declaration, the Allied forces will not be withdrawn from Japan until a satisfactory form of democratic government has been set up. Hence all proposals for the future constitutional machinery in Japan must be judged in the light of what is feasible during whatever period of occupation may be contemplated. Plans which it might be possible to carry into effect during a 20 year occupation might be quite inappropriate if the occupation were to last only 5 years. To be satisfactory to the Allies, the form of government must, it seems, also be felt by the Japanese themselves to be satisfactory. Otherwise it will not survive the removal of the occupation forces. The problem is to discover what conditions are likely to be most favourable to the emergence, with the least possible delay, of a type of government in Japan, which will fulfil the conditions imposed by the Allies and at the same time become established firmly enough to survive and develop, on peaceful and responsible lines, when the Allied forces have been withdrawn.

5. The Allies did not, either in the Potsdam Declaration of 26th July or in their Note to Japan of 11th August, define their attitude to the Japanese Constitution. The Potsdam Declaration does not mention the Constitution or the Diet but lays down that "the Japanese Government shall remove all obstacles to the revival and strengthening of democratic tendencies among the Japanese people".

6. In their surrender offer of 10th August, the Japanese Government sought recognition only of "the prerogative of H.M. the Emperor as a sovereign ruler." In the Allied reply next day, reference was made to "the authority of the Japanese Emperor and Government to rule the State" but there was again no mention of the Constitution or the Diet. The ultimate form of government in Japan, it was added, would be established "in accordance with the Potsdam Declaration", by the freely-expressed will of the Japanese people.

7. The onus has been placed upon the Japanese Government to provide means whereby the will of the people may be freely expressed. Either the Allies, or the Japanese themselves may decide that the existing Constitution is itself an insurmountable obstacle standing in the way of the people expressing their will. If so, the very first task would be to effect constitutional change. This might be done either by the machinery provided in the Constitution for its revision (Preamble and Art. 73) or by the abolition of the existing Constitution and the substitution of an entirely new one.

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The latter method, in view of the text of the Preamble, is one which the Emperor is precluded from adopting. If the Emperor were to abdicate or to be deposed, and a Regency were to be set up, proposals for constitutional change would meet an obstacle in Art. 75 of the Constitution, which states that:

> "No modification can be introduced into the Constitution, or into the Imperial House law, during the time of a Regency."

8. The absence of any specific mention hitherto by the Allies of the Constitution, and the recognition of the authority of the Emperor, who, it must be observed, exercises the rights of sovereignty only in accordance with the provisions of the Constitution (Art. 4) and exercises the legislative powers with the consent of the Imperial Diet (Art. 5) requires the inference that the Constitution is accepted by the Allies as being, for the present at least, in force. Under the over-riding authority of S.C.A.P. the form of government in Japan remains unchanged. The convocation now of the 89th Session of the Diet indicates, too, that this is the view of the matter held by the Emperor, and the Japanese Government. Under the Extraordinary War Measures Act, the powers of the Diet were transferred to the Government for the duration of the war. Acting presumably on the assumption that the "duraction" is only the period of hostilities, the Japanese Government are now, by convoking the Diet, taking what they perhaps regard as a first step in the direction of fulfilling the Allied demand that dictatorial rule shall be brought to an end and the will of the people given expression.

9. There is reason to suppose that the Japanese, if allowed to follow their own course, would proceed, in the near future, to attempt to solve the problem of their future form of government through the machinery provided by the existing Constitution. The Constitution, the gift of the Emperor Meiji, is itself almost sacrosanct and the Japanese might easily describe whatever reforms they envisage as a "Second Restoration", the restoration, this time, of the true spirit of the Constitution which had been "constantly misinterpreted by evil counsellors."

10. From the Allies' point of view, there might be little objection to the maintenance of the existing Constitution, as a foundation upon which to build something better and much to be said in its favour. Especially during the first year or so of Allied control, the Japanese might be given some latitude under Allied guidance to try to "work their own passage" in this difficult field, where so much depends, ultimately, upon a settlement being reached which is not alien to the Japanese mind and which will not be exposed to the dangers which beset the Weimer Constitution in Germany. It should never be forgotten either, that even the most perfect Constitution will be a mere scrap of paper if the will to implement it is lacking. The task, and in Japan it is a formidable one indeed, is not so much to propose fine constitutional formulae as to stimulate the growth, in a strangely arid seed-ground, of a love of liberty and a respect for human personality. The Potsdam Declaration speaks of the "revival" of democratic tendencies and this strikes a "note of restoration" which, if it proves to be the keynote of Allied policy, might well evoke a sympathetic response from the traditionally-minded Japanese. Unfortunately, "restoration" alone would not be enough. It must be borne in mind that only a small fraction of the Japanese nation is politically-minded at all, and that the "basic freedoms" which are a birthright in the Western democracies are conceptions painfully and imperfectly acquired even by the most liberal-minded of the Japanese, and the number of such Japanese is very small indeed.

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III. Defects in the Constitution

11. It is abundantly clear that the form of government and administration which have grown up in Japan call for radical changes. The faults are however, by no means all to be found in the Constitution.

Contrary to widespread belief, the most objectionable feature of the Japanese political system, the autonomous power of the Armed Forces, is not a part of the Constitution at all. Article 11 of the Constitution gives the Emperor "supreme command of the Army and Navy", but does not say how this authority is to be exercised. In practice, it has been vested in the Chiefs of Staff who have been directly responsible to the Emperor and largely independent of the Cabinet. This system is neither a violation of any clause of the Constitution nor a system which the Constitution requires. Again, the obnoxious provision that the War and Navy Ministers within the Cabinet must be a General and an Admiral on the active list, which has given the Services the power to break Cabinets and impose a veto on legislation, is not a part of the Constitution but rests on an Imperial Ordinance of 1900. The War and Navy Ministers' right of direct access to the Emperor, independently of the Cabinet, also is a matter of custom only and (assuming there are to be Service Ministers at all) could be abolished.

12. Nevertheless, these are practices whose growth the Constitution has not checked. Under the Constitution, as it has been applied hitherto, military tyranny has flourished. Civil liberties, freedom of conscience, thought and expression, whatever the Constitution may say about the rights of subjects, have been denied to the people and denounced as evil.

13. The following defects in the Constitution are cardinal and their removal should be a minimum demand:-

(a) It does not make the Cabinet responsible to the Diet, since a Prime Minister can be appointed without the support of a majority in the House of Representatives.

(b) The Diet has only a limited power over the budget, (Arts. 70 and 71).

(c) Too much scope is given for the exercise of emergency powers by the Executive (Arts 8 and 31).

(d) The powers of the House of Peers are too great.

The Japanese are now under an obligation to remedy these and other defects which have proved to be serious obstacles in the way of the growth of democratic government.

14. The provision in the Constitution for constitutional amendments reads as follows:

Art 73. "Should, hereafter, the necessity arise for the amendment of the provisions of the present Constitution, a project to that effect shall be submitted for the deliberation of the Imperial Diet by Imperial order.

In the above case, neither House can open the debate unless not less than two-thirds of the whole number of members are present; and no amendment can be passed unless a majority of not less than two-thirds of the members present is obtained."

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The Constitution has in fact never been amended since its promulgation, but the conditions of defeat, now oblige the Japanese to reform their government, and there seems no reason why the Emperor on the advice of his Government should not now place before the Diet proposals for amending the Constitution and obtain the necessary two-thirds majority vote there.

CONCLUSIONS.

1. The problem is to establish a form of Government in Japan which will fulfil Allied demands and also have good prospect of surviving the withdrawal of Allied forces.

2. The Constitution of 1889 is presumably in force at the moment.

3. Allied demands do not necessarily involve the revocation of the Constitution of 1889.

4. The onus of reforming their Government is laid upon the Japanese.

5. The Japanese, by convoking a new session of the Diet to meet after the surrender, apparently believe

   (a) that the Constitution is still in force, and

   (b) that the opening of the Diet is a step which is consistent with the Allied demands.

6. The Japanese are likely to wish to maintain the present Constitution, as a basis for whatever reforms may be required.

7. The Constitution of 1889 has several grave defects, both in what it says and what is leaves unsaid, and cannot remain as it stands.

8. The Constitution however, contains provisions for its own amendment.

9. Allied pressure for constitutional change must be exerted where it will be most effective.

10. The most promising method of arriving at a solution of the problem formulated in 1. might well be to adhere strictly to the provisions laid down in the Constitution for its own amendment, exerting pressure on the Emperor and the Japanese Government behind the scenes, to sponsor proposals which meet Allied requirements.

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22

ANNEX

CONSTITUTION OF THE EMPIRE OF JAPAN - TOKYO
FEBRUARY 11, 1889.

PREAMBLE

Having, by virtue of the glories of Our Ancestors, ascended the Throne of a lineal succession unbroken for ages eternal; desiring to promote the welfare of, and to give development to the moral and intellectual faculties of Our beloved subjects, the very same that have been favoured with the benevolent care and affectionate vigilance of Our Ancestors; and hoping to maintain the prosperity of the State, in concert with Our people and with their support, We hereby promulgate, in pursuance of Our Imperial Rescript of the 12th day of the 10th month of the 14th year of Meiji, a fundamental law of State, to exhibit the principles by which We are to be guided in Our conduct and to point out to what Our descendants and Our subjects and their descendants are forever to conform.

The rights of sovereignty of the State, We have inherited from Our Ancestors, and We shall bequeath them to Our descendants. Neither We nor they shall in future fail to wield them, in accordance with the provisions of the Constitution hereby granted.

We now declare to respect and protect the security of the rights and of the property of Our people, and to secure to them the complete enjoyment of the same, within the extent of the provisions of the present Constitution and of the law.

The Imperial Diet shall first be convoked for the 23rd year of Meiji and the time of its opening shall be the date when the present Constitution comes into force.

When in the future it may become necessary to amend any of the provisions of the present Constitution, We or Our successors shall assume the initiative right, and submit a project for the same to the Imperial Diet. The Imperial Diet shall pass its vote upon it, according to the conditions imposed by the present Constitution, and in no otherwise shall Our descendants or Our subjects be permitted to attempt any alteration thereof.

Our ministers of State, on Our behalf, shall be held responsible for the carrying out of the present Constitution and Our present and future subjects shall forever assume the duty of allegiance to the present Constitution.

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(Translation)

CHAPTER I - THE EMPEROR

ART. 1. The Empire of Japan shall be ruled over by Emperors of the dynasty which has reigned in an unbroken line of descent for ages past.

2. The succession to the throne shall devolve upon male descendants of the Imperial House according to the provisions of the Imperial House Law.

3. The person of the Emperor is sacred and inviolable.

4. The Emperor being the Head of the Empire the rights of sovereignty are vested in him, and he exercises them in accordance with the provisions of the present Constitution.

5. The Emperor exercises the legislative power with the consent of the Imperial Diet.

6. The Emperor gives sanction to laws, and orders them to be promulgated and put into force.

7. The Emperor convokes the Imperial Diet, opens, closes, and prorogues it, and dissolves the House of Representatives.

8. In cases of urgent necessity, when the Imperial Diet is not sitting, the Emperor, in order to maintain the public safety or to avert a public danger, has the power to issue Imperial Ordinances, which shall take the place of laws.

Such Imperial Ordinances shall, however, be laid before the Imperial Diet at its next Session, and should the Diet disapprove of the said Ordinances, the Government shall declare them to be henceforth invalid.

9. The Emperor issues, or causes to be issued the Ordinances necessary for the carrying out of the laws, or for the maintenance of the public peace and order, and for the promotion of the welfare of his subjects. But no Ordinance shall in any way alter any of the existing laws.

10. The Emperor determines the organization of the different branches of the Administration; he fixes the salaries of all civil and military officers, and appoints and dismisses the same. Exceptions specially provided for in the present Constitution or in other laws shall be in accordance with the respective provisions bearing thereon.

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11. The Emperor has the supreme command of the army and navy.

12. The Emperor determines the organization and peace standing of the army and navy.

13. The Emperor declares war, makes peace, and concludes Treaties.

14. The Emperor proclaims the law of siege.

The conditions and operation of the law of siege shall be determined by law.

15. The Emperor confers titles of nobility, rank, orders and other marks of honour.

16. The Emperor orders amnesty, pardon, commutation of punishments, and rehabilitation.

17. The institution of a Regency shall take place in conformity with the provisions of the Imperial House Law.

The Regent shall exercise the supreme powers which belong to the Emperor in his name.

CHAPTER II. - RIGHTS AND DUTIES OF SUBJECTS

18. The conditions necessary for being a Japanese subject shall be determined by law.

19. Japanese subjects shall all equally be eligible for civil and military appointments, and any other public offices, subject only to the conditions prescribed by Laws and Ordinances.

20. Japanese subjects are amenable to service in the army or navy, according to the provisions of law.

21. Japanese subjects are amenable to the duty of paying taxes, according to the provisions of law.

22. Subject to the limitations imposed by law, Japanese subjects shall enjoy full liberty in regard to residence and change of abode.

23. No Japanese subject shall be arrested, detained, tried or punished, except according to law.

24. No Japanese subject shall be deprived of his right of being tried by the Judges determined by law.

25. Except in the cases provided for in the law, the house of no Japanese subject shall be entered or searched without his permission.

26. Except in the cases provided for in the law, the secrecy of the letters of Japanese subjects shall not be violated.

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27. The rights of property of Japanese subjects shall not be violated.

Such measures, however, as may be rendered necessary in the interests of the public welfare shall be taken in accordance with the provisions of the law.

28. Japanese subjects shall, within limits not prejudicial to peace and order, and not antagonistic to their duties as subjects enjoy freedom of religious belief.

29. Japanese subjects shall, within the limits of law, enjoy liberty in regard to speech, writing, publication, public meetings, and associations.

30. Japanese subjects may present Petitions, providing that they observe the proper forms of respect, and comply with the rules specially provided for such matters.

31. The provisions contained in the present Chapter shall not interfere with the exercise, in times of war or in cases of national emergency, with the supreme powers which belong to the Emperor.

32. Each and every one of the provisions contained in the preceding Articles of the present Chapter shall, in so far as they do not conflict with the laws or the rules and discipline of the army and navy, apply to the officers and men of the army and of the navy.

CHAPTER III - THE IMPERIAL DIET

33. The Imperial Diet shall consist of two Houses: a House of Peers and a House of Representatives.

34. The House of Peers shall, in accordance with the Ordinance concerning the House of Peers, be composed of members of the Imperial Family, of Nobles, and of Deputies who have been nominated by the Emperor.

35. The House of Representatives shall be composed of members elected by the people, according to the provisions of the Law of Election.

36. No one can at one and the same time be a member of both Houses.

37. Every Law requires the consent of the Imperial Diet.

38. Both Houses shall vote upon Projects of Law brought forward by the Government, and may respectively bring forward Projects of Law.

39. A Bill which has been rejected by either of the two Houses shall not be again brought in during the same Session.

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40. Both Houses can make recommendations to the Government in regard to laws, or upon any other subject. When, however, such recommendations are not adopted, they cannot be made a second time during the same Session.

41. The Imperial Diet shall be convoked every year.

42. A Session of the Imperial Diet shall last during three months. In case of necessity, the duration of a Session may be prolonged by Imperial order.

43. When urgent necessity arises, an extraordinary Session may be convoked, in addition to the ordinary one.

The duration of an extraordinary Session shall be determined by Imperial order.

44. With regard to the opening, closing, and prorogation of the Imperial Diet, and the prolongation of its Sessions, these shall take place simultaneously in both Houses.

Should the House of Representatives be ordered to dissolve, the House of Peers shall at the same time be prorogued.

45. When the House of Representatives has been ordered to dissolve, the election of new members shall be ordered by Imperial Decree, and the new House shall be convoked within five months from the day of dissolution.

46. No debate can be opened and no vote can be taken in either House of the Imperial Diet unless not less than one-third of the whole number of the members thereof is present.

47.+ Votes shall be taken in both Houses by absolute majority. In the case of a tie vote, the President shall have the casting vote.

48. The deliberations of both Houses shall be held in public. The deliberations may, however, upon demand of the Government or by Resolution of the House, be held in secret sitting.

49. Both Houses of the Imperial Diet may respectively present addresses to the Emperor.

50. Both Houses may receive Petitions presented by subjects.

51. Both Houses may enact, besides what is provided for in the present Constitution and in the Law of the Houses, Rules necessary for the management of their internal affairs.

+ The Japanese text reads literally:-
"Debates shall, in both Houses, be determined by any majority exceeding half of the number (of votes given)."

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52. No member of either House shall be held responsible ouside the respective Houses for any opinion uttered or for any vote/ given by him in the House. When, however, a member himself has given publicity to his opinions by public speech, by documents in print or in writing, or by any other means, he shall, as regards such action, be amenable to the general law.

53. The members of both Houses shall, during the Session, be free from arrest, unless with the permission of the House, except in cases of flagrant delicts, or of offences connected with civil war or foreign troubles.

54. The Ministers of State, and persons deputed for that purpose by the Government, may at any time take seats and speak in either House.

CHAPTER IV.-THE MINISTERS OF STATE AND THE PRIVY COUNCIL.

55. The respective Ministers of State shall give their advice to the Emperor, and be responsible for it.

All Laws, Imperial Ordinances, and Imperial Rescripts of whatever kind, that relate to the affairs of the State, require the counter-signature of a Minister of State.

56. The Privy Council shall, in accordance with the provisions for the organization of the Privy Council, deliberate upon important matters of State when they have been consulted by the Emperor.

CHAPTER V. - THE JUDICATURE

57. Judicial powers shall be exercised by the Courts of Law according to law, in the name of the Emperor.

The organization of the Courts of Law shall be determined by law.

58. The Judges shall be appointed from among those who possess the proper qualifications determined by law.

No Judge shall be dismissed from his post except on the ground of sentence having been passed upon him for a criminal act, or by reason of his having been subjected to punishment for a disciplinary offence.

Rules for disciplinary punishment shall be determined by law.

/ The term used in the Japanese text signifies "a vote given by the House," but this is clearly not the meaning of the clause.

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59. Trials shall be conducted and judgments rendered publicly. When, however, there exists any fear that such publicity may be prejudicial to peace and order, or to the maintenance of public morality, the public trial may be suspended either in accordance with the Law bearing on the subject or by decision of the Court concerned.

60. Matters which fall within the competency of special Courts shall be specially determined by law.

61. The Courts of Law shall not take cognizance of any suits which arise out of allegations that rights have been infringed by illegal action on the part of the Executive authorities, and which fall within the competency of the Court of Administrative Legislation specially established by law.

CHAPTER VI. - FINANCE

62. The imposition of a new tax or the modification of the rates* (of an existing one) shall be determined by law.

However, all such administrative fees or other revenue as are in the nature of compensation for services rendered, shall not fall within the category of the above clause,

The raising of national loans and the contracting of other liabilities to the charge of the National Treasury, except those that are provided in the Budget, shall require the consent of the Imperial Diet.

63. Existing taxes shall, in so far as they are not altered by new laws, continue to be collected as heretofore.

64. The annual expenditure and revenue of the State shall, in the form of an annual Budget, receive the consent of the Imperial Diet.

Any expenditure which exceeds the appropriations set forth under the various heads of the Budget, or that is not provided for in the Budget, shall be referred subsequently to the Imperial Diet for its approval./

65. The Budget shall be first laid before the House of Representatives.

66. The expenditure in respect of the Imperial House shall be defrayed every year out of the National Treasury, according to the present fixed amount for the same, and shall not hereafter require the consent thereto of the Imperial Diet, except in case an increase thereof is found necessary.

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* Rates levied under an existing tax which may differ according to the various classifications of the tax and the category under which the taxpayer comes.

/ The Japanese text says simply that this approval "must be sought", not that it must be "obtained."

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67. The fixed expenditure based upon the supreme powers of the Emperor, as set forth in this Constitution, and such expenditure as may have arisen by the effect of law, or as appertains to the legal obligations of the Government, shall be neither rejected nor reduced by the Imperial Diet without the concurrence of the Government.

68. In order to meet special requirements, the Government may ask the consent of the Imperial Diet to a certain amount as a Continuing Expenditure Fund, for a previously fixed number of years.

69. In order to supply unavoidable deficits in the Budget, and to meet requirements unprovided for in the same, a reserve fund shall be established.

70. When there is urgent need for the adoption of measures for the maintenance of the public safety, and when in consequence of the state either of domestic affairs or of foreign relations the Imperial Diet cannot be convoked, the necessary financial measures may be taken by means of an Imperial Ordinance.

In such cases as those mentioned in the preceding clause the matter shall be submitted to the Imperial Diet at its next Session for its approval.

71. When the Imperial Diet has not voted on the Budget, or when the Budget has not been brought into actual existence, the Government shall carry out the Budget of the preceding year.

72. The final account of the expenditures and revenue of the State shall be verified and confirmed by the Board of Audit, and it shall be submitted by the Government to the Imperial Diet, together with the report of verification of the said Board.

The organization and competency of the Board of Audit shall be determined by law separately.

CHAPTER VII - SUPPLEMENTARY RULES

73. Should, hereafter, the necessity arise for the amendment of the provisions of the present Constitution, a project to that effect shall be submitted for the deliberation of the Imperial Diet by Imperial order.

In the above case, neither House can open the debate unless not less than two-thirds of the whole number of members are present; and no amendment can be passed unless a majority of not less than two-thirds of the members present is obtained.

74. No modification of the Imperial House Law shall be required to be submitted for the deliberation of the Imperial Diet.

/ There is an omission here in the Japanese text.

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No provision of the present Constitution can be modified by the Imperial House Law.

75. No modification can be introduced into the Constitution, or into the Imperial House Law, during the time of a Regency.

76. Existing legal enactments, such as Laws, Regulations, and Ordinances, and all other such enactments by whatever names they may be called, which do not conflict with the present Constitution, shall continue in force.

All existing contracts or orders, which entail obligations upon the Government and which are connected with expenditure, shall come within the scope of Article 67.

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